



24/7 CLAIM REPORTING

In our continuing effort to provide you with excellent claim service, you may now report a claim and get claim assistance 24 hours a day/7 days a week.

**For claim reporting, call toll free 1-888-875-5231 or visit
USLI.COM and select the “report a claim” option.**

For emergency claims requiring immediate assistance, please use the toll free option. Your call will be referred to a claims professional who will respond within an hour of your call with direction and assistance.

Thank you for placing your trust in our company. We pledge to work hard every day to earn and maintain that trust.



USLI.COM
888-523-5545



Privacy Notice At Collection

We may need to collect certain personal information to provide you with our services and products. For information on how we store, use and protect personal information, please see our Privacy Policy accessible on our website, <https://www.usli.com/privacy-policy/>.

FREE PRIVACY BREACH RISK MANAGEMENT RESOURCES



WILL YOU BE PREPARED WHEN A PRIVACY BREACH OCCURS?

Every year, thousands of privacy breaches are reported, exposing millions of people's personal information. The eRiskHub® portal, powered by NetDiligence®, is an effective way to combat privacy breaches and other types of cyber losses.

With your USLI policy, you will receive instructions on how to access and begin using the eRiskHub® portal—a benefit that is valued in excess of \$1,200 a year!

eRiskHub® an all-in-one resource for becoming educated about and prepared for a privacy breach. This free service is available to USLI policyholders.

Using proprietary tools anchored in proven risk management principals, NetDiligence® provides a full range of enterprise-level information security, e-risk insurability and regulatory compliance assessment and testing services. NetDiligence® supports and is endorsed by some of the world's largest network liability insurance underwriters.

HOW TO START USING THIS FREE OFFERING:

- ▶ Go to eriskhub.com/usli
- ▶ Select "**Register Now**" to set up a free account
- ▶ Create your own username and password;
your access code is **08451**

KEY FEATURES OF THE ERISKHUB® PORTAL



Data breach calculators: Learn how to estimate the cost of a breach, notifications and business interruption.



Learning center: Explore best practices articles, white papers and webinars from leading technical and legal experts. Highlighted topics include PCI compliance and social engineering.



Security training: Watch videos to learn about best practices in security and privacy awareness, or download a training guide.



Risk manager tools: Discover how your cybersecurity measures up to industry best-practices with a self-assessment, and find other resources to assist you with cyber risk management such as sample privacy policies.



Ransomware resources: Listen to experts discuss challenges and best practices to prevent ransomware attacks, and browse our site to discover the impact of an attack based on hundreds of real incidents.



Consultation: Our Breach Coach, HIPPA Coach and Security Coach are available to assist you.



SP 2553389F
Renewal of Number
POLICY DECLARATIONS
No. SP 2553389G

***** RENEWAL CERTIFICATE *****
Mount Vernon Fire Insurance Company
1190 Devon Park Drive, Wayne, Pennsylvania 19087
A Member Company of United States Liability Insurance Group

Direct Bill Policy

NAMED INSURED AND ADDRESS:
Copperfield Enterprises PC
PO BOX 606
GOSHEN, NY 10924

POLICY PERIOD: (MO. DAY YR.) From: 12/23/2024 To: 12/23/2025

12:01 A.M. STANDARD TIME AT YOUR
MAILING ADDRESS SHOWN ABOVE

BUSINESS DESCRIPTION: Tax Preparer/Bookkeeper

**IN CONSIDERATION OF THE RENEWAL PREMIUM STATED BELOW, EXPIRING POLICY NUMBER SP 2553389F IS RENEWED
FOR THE POLICY PERIOD STATED ABOVE. PLEASE ATTACH THIS RENEWAL CERTIFICATE TO YOUR EXPIRING POLICY.
THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED.**

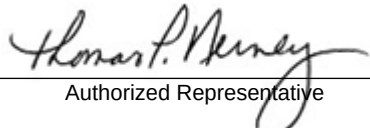
	PREMIUM
Specified Professions Professional Liability Errors And Omissions Coverage Part	\$6,859.00

TOTAL:	\$6,859.00
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Coverage Form(s) and Endorsement(s) made a part of this policy at time of issue
See Endorsement EOD (1/95)

Agent: **RPS BUFFALO (5697)**
Mail Stop: 072101 MER: Meriden
Po Box 2819
Clinton, IA 52733
Broker: **Patriotic Insurance Group**

Issued: **11/15/2024 12:38 PM**

By: 
Authorized Representative

EXTENSION OF DECLARATIONS

Policy No. SP 2553389G

Effective Date: **12/23/2024**

12:01 AM STANDARD TIME AT YOUR MAILING ADDRESS

FORMS AND ENDORSEMENTS

The following forms apply to the Specified Professions Professional Liability Errors And Omissions coverage part

<i>Endt#</i>	<i>Revised</i>	<i>Description of Endorsements</i>
JACKET NY MTV	12/19	Policy Jacket - Mount Vernon
* PL 1 PFAS SP NY	03/24	EXCLUSION - PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS)
PROF-001	06/01	Absolute Pollution Exclusion - Professional
SP	07/09	Specified Professions Professional Liability Coverage Form
SP 210	07/09	Retroactive Date Endorsement
SP 211	07/09	Professional Services Exclusion Endorsement
SP 213	07/09	Computer Consultants Endorsement
SP 267	05/15	Payroll Processing Exclusion
SP 268	07/09	Named Insured Endorsement
SP 270	07/09	Amendment Of Professional Services Endorsement
SP 283 NY	03/22	Pro Security Plus Endorsement
* SP NY M	07/14	New York State Amendatory Endorsement

Endorsements marked with an asterisk (*) have been added to this policy or have a new edition date and are attached with this certificate.

**SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY ERRORS & OMISSIONS COVERAGE PART
DECLARATIONS**

PLEASE READ YOUR POLICY CAREFULLY.

THIS IS A CLAIMS MADE POLICY COVERAGE FORM AND UNLESS OTHERWISE PROVIDED HEREIN, THE COVERAGE OF THIS FORM IS LIMITED TO LIABILITY FOR CLAIMS FIRST MADE DURING THE POLICY PERIOD, OR THE EXTENSION PERIOD, IF APPLICABLE. DEFENSE COSTS SHALL BE APPLIED AGAINST THE DEDUCTIBLE.

No. SP 2553389G

Effective Date: 12/23/2024

12:01 AM STANDARD TIME

ITEM I. NAMED INSURED AND PRINCIPAL ADDRESS

**Copperfield Enterprises PC
PO BOX 606
GOSHEN, NY 10924**

ITEM II. POLICY PERIOD: (MM/DD/YYYY) From: 12/23/2024 To: 12/23/2025

Specified Professions Professional Liability

ITEM III. LIMITS OF LIABILITY	\$1,000,000	EACH CLAIM
	\$1,000,000	ANNUAL AGGREGATE
ITEM IV. DEDUCTIBLE:	\$1,000	EACH CLAIM
ITEM V. PREMIUM:	\$6,859	
ITEM VI. RETROACTIVE DATE:	12/23/2015	

ITEM VII. Coverage Form(s)/Part(s) and Endorsement(s) made a part of this policy at time of issue:
See Endorsement EOD (01/95)

ITEM VIII. Solely in the performance of Professional Services as a(n) **Tax Preparer/Bookkeeper for others for a fee.**

THESE DECLARATIONS ARE PART OF THE POLICY DECLARATIONS CONTAINING THE NAME OF THE INSURED AND THE POLICY PERIOD.

This page has been intentionally left blank.

This endorsement changes insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

EXCLUSION – PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS)

This insurance does not apply to:

Perfluoroalkyl And Polyfluoroalkyl Substances

The **Company** shall not be liable to make payment for, as defined by the policy above; **Loss** or **Claim Expenses** in connection with any **Claim** made against the **Insured** arising out of, directly or indirectly resulting from, in consequence of, in whole or in part, or in any way involving any actual or alleged;

- a. threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any **perfluoroalkyl or polyfluoroalkyl substances**; and
- b. abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, **perfluoroalkyl or polyfluoroalkyl substances**, by any **Insured** or by any other person or entity.

Perfluoroalkyl or polyfluoroalkyl substances means any:

1. Chemical or substance that contains one or more alkyl carbons on which hydrogen atoms have been partially or completely replaced by fluorine atoms, including but not limited to:
 - a. Polymer, oligomer, monomer or nonpolymer chemicals and their homologues, isomers, telomers, salts, derivatives, precursor chemicals, degradation products or by-products;
 - b. Perfluoroalkyl acids (PFAA), such as perfluorooctanoic acid (PFOA) and its salts, or perfluorooctane sulfonic acid (PFOS) and its salts;
 - c. Perfluoropolyethers (PFPE);
 - d. Fluorotelomer-based substances; or
 - e. Side-chain fluorinated polymers
2. Good or product, including containers, materials, parts or equipment furnished in connection with such goods or products, that consists of or contains any chemical or substance described in Paragraph 1.

All other terms and conditions of this policy are the same. This endorsement is a part of your policy. It takes effect on the effective date of your policy unless another effective date is shown.

**UNITED STATES LIABILITY INSURANCE GROUP
WAYNE, PENNSYLVANIA**

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

RETROACTIVE DATE ENDORSEMENT

Section II. FULL PRIOR ACTS COVERAGE PROVISION, is deleted in its entirety and replaced with the following:

In consideration of the premium paid, it is agreed that the **Company** shall not be liable to make any payment for **Loss** or **Claim Expenses** in connection with any **Claim** made against any **Insured** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving a **Wrongful Act** committed, or alleged to have been committed prior to **12/23/2015**.

Coverage shall also not apply to any **Claim** based upon or arising out of any **Wrongful Act** or circumstances likely to give rise to a **Claim** of which any **Insured** had knowledge, or otherwise had basis to reasonably anticipate might result in a **Claim**, prior to the inception of this Policy (including, but not limited to, any prior **Claim** or possible **Claim** or circumstance referenced in the **Application**.)

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Insured's** Policy and takes effect on the effective date of the **Insured's** Policy, unless another effective date is shown.

**UNITED STATES LIABILITY INSURANCE GROUP
WAYNE, PENNSYLVANIA**

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

PROFESSIONAL SERVICES EXCLUSION ENDORSEMENT

In consideration of the premium, paid it is agreed that the **Company** shall not be liable to make any payment for **Loss** or **Claim Expenses** in connection with any **Claim** made against any **Insured** based upon, arising out of, directly resulting from, in consequence of, or in any way involving the rendering or failure to render services as a(n):

Auditing

All other terms and conditions of this policy remain unchanged. This endorsement is a part of the **Insured's** Policy and takes effect on the effective date of the **Insured's** policy unless another effective date is shown.

**UNITED STATES LIABILITY INSURANCE GROUP
WAYNE, PENNSYLVANIA**

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

NAMED INSURED ENDORSEMENT

It is hereby agreed that the following entity and any partner, director, officer or employee thereof while acting within the scope of their duties as such are added as **Insureds** as respects **Claims** first made against them for **Wrongful Acts** occurring on or after **1/21/2015**.

Name of entity: Profenna & DeBellis CPAs PC

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Insured's** Policy and takes effect on the effective date of the **Insured's** Policy, unless another effective date is shown.

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

NEW YORK STATE AMENDATORY ENDORSEMENT

It is agreed:

I. INSURING AGREEMENTS, B. is deleted in its entirety.

I. INSURING AGREEMENTS, D. is deleted in its entirety and replaced with the following:

The **Company** will pay the reasonable expenses incurred by an **Insured**, including loss of wages, if the Insured is required by the Company to attend arbitration proceedings, trial or a hearing in defense of a Claim, in the amount of \$250 per day for each Insured who attends such proceedings at the Company's request, subject to a maximum of \$5,000 per Claim. Payments made pursuant to this provision shall be in addition to the Limits of Liability shown in the Policy Declarations. The Deductible amount stated in the Policy Declarations shall not apply to the payments made by the Company pursuant to this provision.

II. FULL PRIOR ACTS COVERAGE PROVISION, the first paragraph is deleted in its entirety and replaced with the following:

Coverage shall apply to any **Claim** first made against the **Insured** arising out of a **Wrongful Act** and reported to the **Company** during the **Policy Period**, any subsequent renewal of the Policy or during any applicable extension period. Written notice of said **Claim** shall be reported to the **Company** during the **Policy Period** or, if applicable, during the Extension Period.

III. DEFINITIONS, B. is deleted in its entirety and replaced by the following:

B. "Claim" means any written notice received by any **Insured** that any person or entity intends to hold such **Insured** responsible for a **Wrongful Act**. A **Claim** shall be considered first made when an **Insured** or its legal representative or agent first receives notice of the **Claim**.

III. DEFINITIONS H. is deleted in its entirety and replaced by the following:

"Loss" means damages and settlements and pre-judgment interest awarded by a court against any **Insured**. **"Loss"** does not include punitive or exemplary damages, that portion of any multiplied damage award which exceeds the amount multiplied, criminal or civil fines or penalties imposed by law, taxes, matters deemed uninsurable under the law pursuant to which this Policy shall be construed, or the return or dispute over, in whole or in part, of any fees charged or collected by any **Insured** for **Professional Services**.

III. DEFINITIONS, O. is deleted in its entirety.

III. DEFINITIONS, is amended with the addition of the following:

“Termination of Coverage” means, whether made by the **Company** or the **Insured** at any time:

- (1) Cancellation or non-renewal of a **Policy**; or
- (2) Decrease in limits, reduction of coverage, increased deductible or self insured retention, new exclusion, or any other change in coverage less favorable to an **Insured**.

IV. EXCLUSIONS, A. is deleted in its entirety and replaced with the following:

- A.** Criminal, fraudulent, dishonest or discriminatory act or omission committed with knowledge of its wrongful nature or with intent to cause damage, or the gaining by the **Insured** of any personal profit, gain or advantage to which the **Insured** was not legally entitled.

IV. EXCLUSIONS, J. is deleted in its entirety and replaced with the following:

- J.** The actual, alleged or threatened discharge, dispersal, release or escape of any solid, liquid, gaseous or thermal irritant or contaminant including smoke, vapors, soot, fumes, acids, alkalis, chemicals, or waste into or upon land, the atmosphere or any water course or body of water, whether or not such actual, alleged or threatened discharge, dispersal, release or escape is sudden, accidental or gradual in nature, or any cost or expense arising out of any request, demand, or order that any **Insured** or others test for, monitor, clean up, or remove, contain, treat, detoxify or neutralize any pollutants. Waste includes materials to be recycled, reconditioned or reclaimed; or

V. DEFENSE AND SETTLEMENT is amended by the addition of the following:

- E.** If the **Company** concludes that, based on occurrences, offenses, **Claims** or suits which have been reported to the **Company** and to which this insurance may apply, the Limit of Liability is likely to be used up in the payment of judgments or settlements, the **Company** will notify the first **Named Insured**, in writing, to that effect.
- F.** When a limit of insurance described in **I. INSURING AGREEMENT, A.**, has actually been used up in the payment of judgment or settlements:
- (1) The **Company** will notify the first **Named Insured**, in writing, as soon as practicable, that:
 - (a) Such a limit has actually been used up; and
 - (b) The **Company’s** duty to defend suits seeking damages subject to that limit has also ended.
 - (2) The **Company** will initiate, and cooperate in, the transfer of control, to any appropriate **Insured**, of all **Claims** and suits seeking damages which are subject to that limit and which are reported to the **Company** before that limit is used up. The **Named Insured** must cooperate in the transfer of control of said **Claims** and suits.
 - (3) The **Company** agrees to take such steps, as the **Company** deems appropriate, to avoid a default in, or continue the defense of, such suits until such transfer is completed, provided the appropriate **Insured** is cooperating in completing such transfer.

- (4) The **Company** will take no action whatsoever with respect to any **Claim** or suit seeking damages that would have been subject to that limit, had it not been used up, if the **Claim** or suit is reported to the **Company** after that limit of insurance has been used up.
- (5) The **Named Insured**, and any other **Insured** involved in a suit seeking damages subject to that limit, must arrange for the defense of such suit within such time period as agreed to between the appropriate **Insured** and the **Company**. Absent any such agreement, arrangements for the defense of such suit must be made as soon as practicable.
- G. The **Named Insured** will reimburse us for expenses the **Company** incurs in taking those steps the **Company** deems appropriate in accordance with **F.(2)** above.
The duty of the **Named Insured** to reimburse the **Company** will begin on:
 - (1) The date on which the applicable limit of insurance is used up, if the **Company** sent notice in accordance with **E.** above; or
 - (2) The date on which the **Company** sent notice in accordance with **F.(1)** above, if the **Company** did not send notice in accordance with **E.** above.
- H. The exhaustion of any limit of insurance by the payments of judgment or settlements, and the resulting end of the **Company's** duty to defend, will not be affected by the **Company's** failure to comply with any of the provisions of this condition.
- I. The **Company** agrees if notice of entry of judgment for a **Claim**, first made against an **Insured** during the **Policy Period** or during the Extended Reporting Period, if applicable, for **Wrongful Acts** arising solely out of an **Insured's** duties, is served upon the **Insured** or **Insured's** attorney and upon the **Company** and such judgment remains unsatisfied at the expiration of thirty (30) days from the serving of notice, action may, except during a stay or limited stay of execution against the **Insured** on such judgment, be maintained against the **Company** for the amount of such judgment not exceeding the Limit of Liability shown on the Policy Declarations.

VI. LIMITS OF LIABILITY AND DEDUCTIBLE, **E.** and **H.** are deleted in their entirety and replaced with the following:

- E.** The Deductible amount stated in the Declarations shall apply to **Loss** and shall apply to each and every **Claim**. The **Company** shall only be liable to pay, subject to the Limits of Liability provisions stated in the Declarations, for **Loss** in excess of such Deductible, and such Deductible shall not be insured under this Policy.
- H.** The Limits of Insurance of this Policy apply separately to each consecutive annual period starting with the beginning of the **Policy Period** shown in the Declarations. If this Policy is issued for a period of more than twelve (12) months but less than twenty four (24) months or if the **Policy Period** is extended after issuance, the annual aggregate limit of the expiring Policy shall be increased in proportion to the Policy extension.

VI. LIMITS OF LIABILITY AND DEDUCTIBLE, **C.** is deleted in its entirety.

X. EXTENDED REPORTING PERIOD is deleted in its entirety and replaced with the following:

- A. Upon **Termination of Coverage** the **Company** will provide to the **Named Insured** a sixty (60) day Automatic Extended Reporting Period, or a ninety (90) day Automatic Extended Reporting Period if the **Named Insured** is a public entity, beginning effective the date of such termination or renewal provided the **Named Insured** has not purchased similar insurance from this or any other **Company** covering **Claims** first made during the Automatic Extended Reporting Period. In the event similar insurance is in force, coverage as provided by this endorsement shall be excess over any such insurance. The granting of such Automatic Extended Reporting Period shall not serve to increase the **Company's** Limit of Liability.
- B. The **Named Insured** shall have the right, upon payment of the required additional premium, less any return premium owed because of **Termination of Coverage**, plus any premium for the **Policy Period** which is owed and not yet paid, up to three (3) years following the effective date of **Termination of Coverage** (herein referred to as the Optional Extended Reporting Period) in which to give written notice to the **Company** of **Claims** first made against the **Insured** during said three years period for any **Wrongful Act** occurring prior to such **Termination of Coverage** and otherwise covered by this Policy.
- C. The right to an Optional Extended Reporting Period shall terminate, however, unless written notice of such election together with payment of the required additional premium due, less any return premium owed because of cancellation of this Policy, plus any premium for the **Policy Period** which is owed and not yet paid, is received by the **Company** not later than the later of:
- (1) Sixty (60) days from the effective date of **Termination of Coverage** or
 - (2) Thirty (30) days from the date of mailing or delivery of notice of **Termination of Coverage** stating the availability of, the premium for, and the importance of purchasing additional Extension Period coverage.
- D. The required additional premium shall be sixty-five percent (65%) of the full annual premium for a twelve (12) month extension, one hundred twenty-five percent (125%) of the full annual premium for a twenty-four (24) month extension, and one hundred ninety-five percent (195%) of the full annual premium for a thirty-six (36) month extension. The premium charged for the Extended Reporting Period coverage shall be based upon the rates for such coverage in effect on the date the Policy was issued or last renewed, and the **Company** shall not charge a different premium for such coverage due to any change in its rates, rating plans or rating rules subsequent to issuance or last renewal of the Policy.
- E. The total aggregate limit afforded for Claims first made during the Extended Reporting Period shall be the amount of coverage remaining in the expiring Policy annual aggregate. In no event shall the limits of liability afforded by any and all extensions exceed the limit of liability afforded by the Policy to which this extension applies.
- F. Not later than thirty (30) days after the effective date of **Termination of Coverage**, the **Company** shall mail or deliver to the first **Named Insured** a written advice of the Automatic Extended Reporting Period and the availability of it, and also of the amount of the required additional premium for the Extended Reporting Period and advise the first **Named Insured** of the importance of purchasing the Extended Reporting Period; however, if this Policy is cancelled by the **Company** due to non-payment of premium or

fraud on the part of any **Insured**, the **Company** shall not be required to provide such a premium quotation unless requested by the first **Named Insured**.

- G.** If coverage is terminated by the **Company** because of non-payment of premium or fraud by the insured, and at the effective date of such **Termination of Coverage** the **Company** has provided this insurance to the first **Named Insured** on a claims-made basis without interruption for less than one year, there shall be no right to elect and purchase an Optional Extended Reporting Period. If coverage has been in effect for more than one year the insured has the right to elect and purchase this Optional Extended Reporting Period. For purposes of this paragraph, Extended Reporting Period coverage shall not be considered as time when the **Company** was providing this coverage.
- H.** The Optional Extended Reporting Period shall not be cancelable, and the required additional premium for the Optional Extended Reporting Period shall be fully earned by the **Company** at the inception of the Optional Extended Reporting Period.
- I.** The **Company** shall provide Optional Extension Period coverage if this Policy is issued to a corporation, partnership or other entity upon **termination of coverage** to any person covered under this Policy, if:
 - (1)** Such insured entity has been placed in liquidation or bankruptcy or permanently ceases operations; or
 - (2)** The entity or its designated trustee does not purchase Optional Extension Period coverage; and
 - (3)** Such person requests the Optional Extension Period coverage within 120 days of the termination of coverage.

The **Company** shall have no obligation to provide any notice to any such person of the availability of the Optional Extended Reporting Period coverage.

- J.** During a claims-made relationship and any extended reporting period, a person employed or otherwise affiliated with the **Named Insured** and covered by this Policy during such affiliation, shall continue to be covered under this Policy and any extended reporting period after such affiliation has ceased for such person's covered acts or omissions during such affiliation.

XI. NOTICE/CLAIM REPORTING PROVISIONS is amended by the addition of the following:

- C.** Failure to give any notice required in A. above, shall not invalidate any **Claim** made by the **Named insured** if it shall be shown not to have been reasonably possible to give such notice within the prescribed time period and that notice was given as soon as was reasonably possible thereafter.
- D.** Failure to give any notice required in A. above shall not invalidate any **Claim** made by the **Named insured** unless the failure to provide timely notice has prejudiced the **Company**, except as provided in paragraph C. However, since this is a claims made Policy, the **Claim** shall be made during the **Policy Period**, any renewal thereof, or any extended reporting period.
- E.** With respect to all **Claims** if the **Company** disclaims liability or denies coverage based upon the failure to provide timely notice, then the injured person or other claimant may

maintain an action directly against the **Company**, in which the sole question is the **Company's** disclaimer or denial based on the failure to provide timely notice, unless within sixty (60) days following such disclaimer or denial, the **Parent Organization** or the **Company**:

- (1) Initiates an action to declare the rights of the parties under the insurance policy; and
- (2) Names the injured person or other claimant as a party to the action.

F. Upon the **Company's** receipt of a written request by an **Insured** who has filed a **Claim** or by another claimant, the **Company** shall, within sixty (60) days of receipt of the written request:

(a) Confirm to the claimant in writing whether the **Insured** had a policy in effect with the **Company** on the date of the alleged **Wrongful Act**; and

(b) Specify the liability insurance limits of the coverage provided under the Policy.

G. Notice given by or on behalf of the **Named Insured**, or written notice by or on behalf of the injured person or any other claimant, to any licensed agent of the **Named Insured** in the state of New York, with particulars sufficient to identify the **Insured**, shall be deemed notice to the **Company**.

XII. CANCELLATION OR NON-RENEWAL, is deleted in its entirety and replaced with the following:

A. CANCELLATION

(1) The **Named Insured** shown in the Declarations may cancel this entire Policy by mailing or delivering to the **Company** advance written notice of cancellation.

(2) Cancellation Of Policies In Effect

(a) 60 Days Or Less

The **Company** may cancel this Policy by mailing or delivering to the **Named Insured** written notice of cancellation at least:

i. Thirty (30) days before the effective date of cancellation if the **Company** cancels for any reason not included in paragraph A.(2)(a)ii. below.

ii. Fifteen (15) days before the effective date of cancellation if the **Company** cancels for any of the following reasons:

- a) Non-payment of premium, provided however, that a notice of cancellation on this ground shall inform the **Named Insured** of the amount due;
- b) Conviction of a crime arising out of acts increasing the hazard insured against;
- c) Discovery of fraud or material misrepresentation in the obtaining of the Policy or in the presentation of a **Claim**;
- d) After issuance of the Policy or after the last renewal date, discovery of an act or omission, or a violation of any Policy condition, that substantially and materially increases the hazard insured against, and that occurred subsequent to inception of the current **Policy Period**;
- e) Material physical change in the property insured, occurring after issuance or last annual renewal anniversary date of the Policy, that results in the property becoming uninsurable in accordance with the **Company's** objective, uniformly applied underwriting standards in effect at the time

the Policy was issued or last renewed; or material change in the nature or extent of the risk, occurring after issuance or last annual renewal anniversary date of the policy, that causes the risk of **Loss** to be substantially and materially increased beyond that contemplated at the time the Policy was issued or last renewed;

- f) Required pursuant to a determination by the Superintendent that continuation of the **Company's** present premium volume would jeopardize the **Company's** solvency or be hazardous to the interest of the **Company's** policyholders, the **Company's** creditors or the public;
- g) A determination by the Superintendent that the continuation of the Policy would violate, or would place the **Company** in violation of, any provision of the Insurance Code; or
- h) Where the **Company** has reason to believe, in good faith and with sufficient cause, that there is a probable risk of danger that the **Named Insured** will destroy, or permit to be destroyed, the insured property for the purpose of collecting the insurance proceeds. If the **Company** cancels for this reason, the **Named Insured** may make a written request to the Insurance Department, within ten (10) days of receipt of this notice, to review the **Company's** cancellation decision. Also, the **Company** will simultaneously send a copy of this cancellation notice to the Insurance Department.
- i) Revocation or suspension of the insured's license to practice their profession.

(b) For More Than 60 Days

If this Policy has been in effect for more than sixty (60) days, or if this Policy is a renewal or continuation of a Policy the **Company** issued, the **Company** may cancel only for any of the reasons listed in paragraph **A.(2)(a)ii.** above, provided:

- i. The **Company** mails the **Named Insured** written notice at least fifteen (15) days before the effective date of cancellation; and
- ii. If the **Company** cancels for non-payment of premium, the **Company's** notice of cancellation informs the **Named Insured** of the amount due.

(3) The **Company** will mail or deliver the **Company's** notice, including the reason for cancellation, to the **Named Insured** at the address shown in the Policy and to the authorized agent or broker.

(4) If this Policy is cancelled, the **Company** will send the **Named Insured** any premium refund due. If the **Company** cancels, the refund will be pro rata. If the **Named Insured** cancels, the refund may be less than pro rata.

However, when the premium is advanced under a premium finance agreement, the cancellation refund will be pro rata. Under such financed Policies, the **Company** will be entitled to retain a minimum earned premium of ten percent (10%) of the total Policy premium or \$60, whichever is greater. The cancellation will be effective even if the **Company** has not made or offered a refund.

B. If one of the reasons for cancellation in paragraph **A.(2)(a)ii.** exists, the **Company** may cancel this entire Policy, even if the reason for cancellation pertains only to a new coverage or endorsement initially effective subsequent to the original issuance of this Policy.

C. NON-RENEWAL

(1) If the **Company** decides not to renew this Policy the **Company** will send notice as provided in Paragraph C.(3) below.

(2) Conditional Renewal

If the **Company** conditionally renews this Policy subject to a:

- (a) Change of limits;
- (b) Change in type of coverage;
- (c) Reduction of coverage;
- (d) Increased deductible;
- (e) Addition of exclusion; or
- (f) Increased premiums in excess of ten percent (10%), exclusive of any premium increase due to and commensurate with insured value added or increased exposure units; or as a result of experience rating, loss rating, retrospective rating or audit;

the **Company** will send notice as provided in paragraph C.(3) below.

(3) Notices Of Non-renewal And Conditional Renewal

(a) If the **Company** decides not to renew this Policy or to conditionally renew this Policy as provided in paragraphs C.(1) and C.(2) above, the **Company** will mail or deliver written notice to the **Named Insured** shown in the Declarations at least sixty (60) but not more than one hundred twenty (120) days before:

- i. The expiration date; or
- ii. The anniversary date if this is a continuous Policy.

(b) Notice will be mailed or delivered to the **Named Insured** at the address shown in the Policy and to the authorized agent or broker. If notice is mailed, proof of mailing will be sufficient proof of notice.

(c) Notice will include the specific reason(s) for non-renewal or conditional renewal, including the amount of any premium increase for conditional renewal and description of any other changes.

(d) If the **Company** violates any of the provisions of paragraphs C.(3)(a), (b) or (c) above, by sending the **Named Insured** an incomplete or late conditional renewal notice or a late non-renewal notice:

- i. Coverage will remain in effect at the same terms and conditions of this Policy at the lower of the current rates or the prior period's rates until sixty (60) days after such notice is mailed or delivered, unless the **Named Insured**, during this sixty (60) day period, has replaced the coverage or elects to cancel.
- ii. On or after the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy for another **Policy Period**, at the lower of the current rates or the prior period's rates, unless the **Named Insured**, during this additional **Policy Period**, has replaced the coverage or elects to cancel.

(e) If the **Named Insured** elects to renew on the basis of a late conditional renewal notice, the terms, conditions and rates set forth in such notice shall apply:

- i. Upon expiration of the sixty (60) day period; or
- ii. Notwithstanding the provisions in Paragraphs (d)(i) and (d)(ii), as of the

renewal date of the Policy if the **Company** send the **Named Insured** the conditional renewal notice at least thirty (30) days prior to the expiration or anniversary date of the Policy.

- f. The **Company** will not send the **Named Insured** notice of non-renewal or conditional renewal if the **Named Insured**, the **Named Insured's** authorized agent or broker or another insurer of the **Named Insured** mails or delivers notice that the Policy has been replaced or is no longer desired.

XV. CHANGES, is deleted in its entirety and replaced with following:

This Policy contains all agreements between the **Insured** and the **Company** concerning the insurance afforded. The **Named Insured** shown in the Declarations is authorized to make changes in the terms of this Policy, but only with the consent of the **Company**. This Policy's terms can be amended or waived only by endorsement issued by the **Company** and made a part of this Policy. Knowledge of an agent to the **Company** shall be acknowledged to the **Company** and any fact which breaches a condition of the Policy, and is known to the **Company's** agent, shall not void the Policy or defeat a recovery thereon in the event of **Loss**.

XVIII. OTHER INSURANCE is deleted in its entirety and replaced with the following:

This Policy shall be excess of and not contribute with other valid and collectible insurance, including but not limited to any insurance under which there is a duty to defend, unless such other insurance is specifically written to be in excess of this Policy.

XXII. ACTION AGAINST COMPANY, A. is deleted in its entirety and replaced with the following:

A. No person or organization has a right under this Policy:

- (1) To join the **Company** as a party or otherwise bring the **Company** into a suit asking for damages from an **Insured**; or
- (2) To sue the **Company** on this Policy unless all of its terms have been fully complied with.

A person or organization may sue the **Company** to recover on an agreed settlement or on a final judgment against an **Insured**; but the **Company** will not be liable for damages that are not payable under the terms of this Policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by the **Company**, the **Insured** and the claimant or the claimant's legal representative. In case judgment against an **Insured** in an action brought to recover damages for injury shall remain unsatisfied at the expiration of thirty (30) days from the serving of notice of entry of judgment upon the attorney for the **Named Insured** or the **Named Insured**, and upon the **Company**, then an action may, except during a stay or limited stay of execution against the **Named Insured** or **Insured** on such judgment, be maintained against the **Company** under the terms of the Policy for the amount of such judgment not exceeding the amount of the applicable limit of coverage under such Policy.

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Named Insured's** Policy and takes effect on the effective date of the **Named Insured's** Policy unless another effective date is shown.

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